

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

06/15/2026
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF
FRANCISCUS DYLAN ROSARIO**

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 2015.5; California Rules of Court, rule 3.1306; and Evidence Code section 452, subdivision (d).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under Evidence Code sections 1400 to 1402

(authentication); and Evidence Code section 452, subdivision (d).

5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of California:

1. I am the Plaintiff in *Rosario v. CSAA Insurance Exchange, et al.* (CGC-25-631802), San Francisco Superior Court, Dept. 302, Hon. Joseph M. Quinn. I am also the Plaintiff in the related action *Rosario v. Abdelhalim, et al.* (CGC-25-631801), San Francisco Superior Court, Dept. 301, Hon. Christine Van Aken. The two actions are related under California Rules of Court, rule 3.300. I make this declaration of my own personal knowledge, and if called as a witness, I could and would testify competently to the matters stated herein.
2. **802 Anti-SLAPP RFJN (Exhibit 802-A).** Attached as Exhibit 802-A to the accompanying Second Supplemental Request for Judicial Notice is a true and correct copy of Defendant CSAA Insurance Exchange's Request for Judicial Notice in Support of Special Motion to Strike, filed in CGC-25-631802 on April 9, 2026 (DocID 10152117). The lodged copy matches the version served on Plaintiff by Porter Scott, P.C., on April 9, 2026.
3. **802 Anti-SLAPP MPA (Exhibit 802-B).** Attached as Exhibit 802-B is a true and correct copy of the Memorandum of Points and Authorities in Support of CSAA's Special Motion to Strike under Code of Civil Procedure section 425.16, filed in CGC-25-631802 on April 9, 2026 (DocID 10152120). The lodged copy matches the version served on Plaintiff by Porter Scott, P.C., on April 9, 2026.
4. **802 Demurrer MPA (Exhibit 802-C).** Attached as Exhibit 802-C is a true and correct copy of the Memorandum of Points and Authorities in Support of Defendants' Demurrer to the First Amended Complaint, filed in CGC-25-631802 on April 13, 2026 (DocID 10157163). The lodged copy matches the version served on Plaintiff by Porter Scott, P.C., on April 13, 2026.
5. **802 Section 436 MPA (Exhibit 802-D).** Attached as Exhibit 802-D is a true and correct copy of the Memorandum of Points and Authorities in Support of CSAA's Motion to Strike Under

Code of Civil Procedure section 436, filed in CGC-25-631802 on April 22, 2026 (DocID 10174569). The lodged copy matches the version served on Plaintiff by Porter Scott, P.C., on April 22, 2026.

6. **Same counsel and same firm.** The 802 papers identified above are signed for CSAA by Porter Scott, A Professional Corporation, with signature blocks identifying Chad S. Tapp (SBN 214898) and Tyler J. O’Connell (SBN 346673) as counsel of record. The same firm signed CSAA’s winning 801 papers noticed in Plaintiff’s filed Supplemental Request for Judicial Notice (Exhibits 801-A through 801-I).
7. **Complement to Transaction 1.** Plaintiff previously filed a Supplemental Request for Judicial Notice of CGC-25-631801 filings and the May 12, 2026 Department 301 minute order (Exhibits 801-A through 801-I). This Second Supplemental Request complements that filing by noticing 802 defense motion language and 594102 trial-record items from defense RFJNs that were not individually attached to Plaintiff’s May 8, 2026 Operative Oppositions.
8. **MIL 8 (Exhibit 802-E).** Attached as Exhibit 802-E is a true and correct copy of Defendant Subhi Abdelhalim’s Motion in Limine No. 8 to Exclude Evidence and Statements Concerning Liability Insurance, filed in *Rosario v. Abdelhalim* (CGC-21-594102) on January 17, 2025 (FSX Transaction No. 80936014), or a placeholder cover sheet identifying that record pending SFTC portal verification. Plaintiff’s filed Supplemental RJN referenced MIL 8 in text but did not attach MIL 8 as a standalone exhibit; this declaration supplies that gap.
9. **Percipient MIL outcome facts (G-1).** I was present at trial hearings in CGC-21-594102 on February 18, 2025 and April 16, 2025. CSAA-funded defense counsel filed MIL 6, MIL 8, and MIL 17 seeking exclusion of silent-witness materials and represented to the trial court that foundational materials were not produced in discovery or were of unknown provenance. CSAA’s 802 MPAs now recite that the court denied MILs and that plaintiff was free to present objective liability evidence. Those representations cannot be reconciled without the trial scheduling order and MIL 8 record noticed as **Exhibits 802-E and 802-F**.
10. **Trial scheduling order (Exhibit 802-F).** Attached as Exhibit 802-F is a true and correct copy of the Order re Trial Scheduling and Motions in Limine from CGC-21-594102, noticed

1 as Exhibit H to CSAA's 802 Anti-SLAPP RFJN, or a placeholder cover sheet pending trial-
2 docket portal verification.

3 **11. Cross-declaration: MIL 6 and MIL 17.** MIL 6 and MIL 17 are authenticated in Plaintiff's
4 filed Supplemental Request for Judicial Notice declaration at items 12 and 13 and attached as
5 **Exhibits 801-G and 801-H** in Transaction 1. Those items are incorporated by reference and
6 are not re-attached in this Transaction 2 appendix.

7 **12. Limited evidentiary purpose.** The exhibits to the accompanying Second Supplemental Re-
8 quest for Judicial Notice are tendered for the limited purpose of establishing the existence,
9 filing, contents, and legal effect of the noticed 802 defense records and selected 594102 trial-
10 record items. They are not tendered for the truth of any disputed factual recital inside those
11 records.

12 **13. No relief from another department.** I do not, by this declaration, ask Department 302 to
13 revisit, vacate, or reconsider the May 12 Order entered in Department 301. I ask only that
14 Department 302 take judicial notice of the noticed records under Evidence Code sections
15 452(d) and 453 because those records are relevant to Defendant's pending demurrer, special
16 motion to strike, and section 436 motion in this action.

17 I declare under penalty of perjury under the laws of the State of California that the foregoing is
18 true and correct.

